PARTNERS of the AMERICAS
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CHILD SAFEGUARDING POLICY

Effective September 2021

Enacted

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President & CEO

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Table of Contents

Table of Contents 2
1. Introduction 3
2. Definitions 3
3. Purpose 7
4. Goal 8
5. Compliance 8
5.1 Order of Precedence 8
6. Child Safeguarding Core Principles 9
7. Child Safeguarding Code of Conduct 10
8. Screening and Requirements 11
8.1 Safe Recruitment and Screening 12
8.2 Onboarding Requirements 12
8.3 Education and Training Requirements 13
9. Reporting Procedures 14
9.1 Filing a Report 14
9.2 Response to a Report 14
9.3 Child Data and Cybersecurity 15
9.4 Confidentially 15
9.5 Retaliation against Complainants, Witnesses, or Victims 16
9.6 Complaints about Partner Organizations 16
9.7 Communication 16
9.8 Accountability of Management 17

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1. Introduction

This policy and related procedures describe Partners of the Americas' (POA) commitment to child protection and safeguarding. The purpose of the policy is to ensure that POA's programs and operations are safe for children. POA aims to promote awareness and prevention to mitigate the risk of or actual harm that may come to children involved in POA's programs and operations.

2. Definitions

For the purposes of this policy, POA defines the following terms:

1) **"Beneficiary" or "Beneficiaries"**: A person who receives assistance as part of humanitarian relief or development programs.
2) **"Bullying"**: Intentional and aggressive behavior occurring repeatedly against a victim where there is a real or perceived power imbalance, and where the victim feels vulnerable and powerless to defend himself or herself. The unwanted behavior is hurtful: it can be physical, including hitting, kicking, and the destruction of property; verbal, such as teasing, insults, and threats; or relational, through the spreading of rumors and exclusion from a group. The definition of bullying is not limited to overt harassment, but encompasses any repeated actions intended to cause distress physically or emotionally.
3) **"Cyberbullying":** the posting or sending of electronic messages, including pictures or videos, aimed at harassing, threatening, or targeting another person. A whole range of social platforms, including chat rooms, blogs, and instant messaging, are used in cyberbullying. Cyberbullying can cause profound harm as it leaves a permanent footprint in cyberspace and can quickly reach a wide audience. Bullying and cyberbullying feed into each other, forming a continuum of damaging behavior.
4) **"Child" or "Children"**: A child or children are defined as persons who have not attained 18 years of age, irrespective of local country definitions of when a child reaches adulthood.
5) **"Child abuse, exploitation, or neglect**": Constitutes any form of physical abuse; emotional ill-treatment; sexual abuse; neglect or insufficient supervision; trafficking; or commercial, transactional, labor, or other exploitation resulting in actual or potential harm to the child's health, well-being, survival, development, or dignity. It includes, but is not limited to: Any act or failure to act which results in death, serious physical, or emotional harm to a child, or an act or failure to act which presents an imminent risk of serious harm to a child. The main categories of Child Abuse are Physical Abuse, Emotional Abuse, Neglect, Sexual Exploitation & Abuse, and Exploitation.
    i) **"Child physical abuse"**: Constitutes acts or failures to act resulting in injury (not necessarily visible), unnecessary or unjustified pain or suffering without causing injury, harm, or risk of harm to a child's health or welfare, or death. Such acts may include, but are not limited to: Punching, beating, kicking, biting, shaking, throwing, stabbing, choking, or hitting (regardless of object used), burning, female genital mutilation, torture, and other physical acts. These acts are

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considered abuse regardless of whether they were intended to hurt the child. Physical injury or suffering may include, but is not limited to: Bruises, marks, soft tissue swelling, hematomas, fractures, sprains, dislocation, burns, damage to organs, death, permanent disfigurement, and any other nontrivial injury.

ii) **"Child emotional abuse or ill treatment"**: Harm to a child's emotional, intellectual, mental, or psychological development caused by acts, threats of acts, or coercive tactics. This may occur as an isolated event or on an ongoing basis. Emotional abuse includes, but is not limited to: Any humiliating or degrading treatment (e.g., bad name calling, threats, yelling/screaming/cursing at, teasing, constant criticism, belittling, persistent shaming, etc.), control, withholding of information on their rights, failure to meet a child's emotional needs, and rejecting, ignoring, terrorizing, isolating, confining a child, or any other deliberate activity that makes the child feel diminished or embarrassed.

iii) **"Child neglect"**: Constitutes failure to provide for a child's basic needs during activities that are responsible for the care of a child in the absence of the child's parent or guardian and failure to meet a child's basic needs either deliberately or through negligence. Neglect includes, but is not limited to: Failing to provide adequate food, sufficient or seasonally-appropriate clothing and/or shelter; failing to prevent harm; failing to ensure adequate supervision; failing to ensure access to appropriate medical care or treatment or providing inappropriate medical treatment (e.g., administering medication when not authorized); or failing to provide a safe physical environment (e.g., exposure to violence, unsafe programming location, unsafe sleeping practices, releasing a child to an unauthorized adult, access to weapons or harmful objects, failing to child-proof a space that children will occupy, etc.).

iv) **"Child Sexual Exploitation & Abuse"**: All forms of sexual violence and coercion, sexual solicitation, manipulation, or trickery including incest, fondling a child's genitals, penetration, sodomy, early and forced marriage, rape, involvement in or exposure to indecent images/video (aka pornography), sexual slavery/trafficking, and statutory rape. Sexual abuse may include, but is not limited to: Indecent touching or exposure, explicit sexual language towards or about a child, and grooming (see definition below). Sexual abuse does not always involve touching. Sexual Exploitation is any actual or attempted abuse of a position of vulnerability, differential power, or trust for sexual purposes including, but not limited to: Profiting monetarily, socially, or politically from the sexual exploitation of another. Be aware that technology is a tool sometimes used to sexually exploit a child.

v) **"Child Sexual Abuse":** The actual or threatened physical intrusion of a sexual nature, whether by force or under unequal or coercive conditions. Other types of abuse associated with sexual abuse include:

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i. **"Sexual abuse perpetrated by an adult"**: Any contact or activity of a sexual nature that occurs between a child and an adult. This includes any activity which is meant to arouse or gratify the sexual desires of the adult or child.

ii. **"Sexual abuse perpetrated by another child or children"**: Any contact or activity of a sexual nature that occurs between a child or children and another child when there is no consent, when consent is not possible, or when one child has power over the other child. This includes any activity which is meant to arouse or gratify the sexual desires of any of the children.

vi) **"Child Exploitation"**: Constitutes the abuse of a child where some form of remuneration is involved or whereby the perpetrators benefit in some manner. Exploitation represents a form of coercion and violence that is detrimental to the child's physical or mental health, development, education, or well-being. The actual or attempted abuse of a position of vulnerability, power differential, or trust for the benefit of the individual leveraging their position, power, privilege, or wealth (through enticement, manipulation, coercion, or trickery) to engage a child in labor, domestic servitude, forced criminality, soldiering, or organ harvesting. Typically, the person(s) exploiting a child does so in order to profit monetarily, socially, or politically. It can happen to one or a group of children in the community of origin, outside of the community, or internationally. The exploitation of a child may include, but is not limited to:

(a) Domestic servitude (e.g., cleaning, childcare, cooking, etc.);
(b) Forced labor (commonly in factories or agriculture);
(c) Forced criminal activities such as pickpocketing, begging, transporting drugs, manufacturing drugs, selling pirated merchandise;
(d) Used for benefit fraud;
(e) Forced to become a child soldier or join a gang.

vii) **"Transactional sex"**: The exchange of money, employment, goods, or services for sex, including sexual favors other forms of humiliating, degrading, or exploitative behavior. This includes any exchange of assistance that is due to beneficiaries of assistance.

viii) **"Solicitation of transactional sex"**: Requesting transactional sex.

ix) **"Grooming"**: Is the process in which an adult builds a relationship with a child or the child's caretaker to gain the child's or the caretaker's trust for the purposes of sexually abusing and/or exploiting the child. Grooming typically occurs in phases, and it can happen online or face to face, by a stranger or by someone the child or caretaker knows. Since it is a gradual process, it can sometimes be difficult to detect. Here are a few indicators an adult may be grooming a child or his/her caretaker:

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(a) Favoring the child over others;
(b) Providing the child with rewards or privileges;
(c) Isolating the child from others;
(d) Expressing interest in a child who is particularly vulnerable or in need of support (e.g., previous abuse of the child by another);
(e) Befriending the parents or caretakers who are responsible to protect the child;
(f) Providing the child with alcohol or drugs;
(g) Building intimacy (i.e., having inside jokes or telling the child that nobody understands him/her like the groomer does);
(h) Threatening, blackmailing, intimidating, or scaring a child by saying the groomer will do something to the child's family or friends.

5) **"Child Data"**: Paper or electronic information containing Personally Identifiable Information (PII) collected for programmatic or operational purposes. PII is considered confidential and includes sensitive or protected categories including but not limited to health information.
6) **"Child Protection"**: The goal of child protection is making the world safe for children. Child Protection responses are macro-level in scale and involve holistic approaches to meet the social and legal protection needs of children and their families within vulnerable communities.
7) **"Child Safeguarding"**: The set of policies, procedures, and practices employed to ensure that POA is a child-safe organization. Child Safeguarding is making POA safe for children. It involves our collective and individual responsibility and preventative actions to ensure that all children are protected from deliberate or unintentional acts that lead to the risk of or actual harm by POA Affiliates who come into contact with children or impact them through our development interventions, humanitarian responses, and operations. This includes our direct program implementation, work through partners, and management of children's personal data.
8) **"Gender Responsive Safeguarding"**: is a safeguarding approach that takes full account of gender in considering the specific safeguarding needs of girls, boys, and other gender identities; and integrates safeguarding measures that address protection risks for children (girls, boys, and other gender identities) that stem from issues relating to gender bias and discrimination.
9) **"Child Welfare"**: Child Welfare is making the community safe for children. It includes claims of child abuse that happen external to POA and/or that are required by law or local norms to be reported to local authorities.
10) **"Complainant"**: The person reporting (or "making a complaint" about) a violation of the Child Safeguarding Policy. This could be the victim or another person who becomes aware of the wrongdoing.
11) **"Complaint"**: The report of a violation against the Child Safeguarding Policy.

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12) **"Complaints process"**: A framework that describes the course of action for receiving and processing allegations of a violation of the Child Safeguarding Policy. This includes systems for processing complaints within an organization, as well as procedures for beneficiaries to bring complaints forward.
13) **"Economic exploitation"**: The deliberate misplacement, exploitation, or wrongful temporary or permanent use of belongings or money.
14) **"Exploitative relationship"**: A relationship that constitutes sexual exploitation (i.e., any actual or attempted abuse of a position of vulnerability, differential power, or trust, for sexual purposes, including, but not limited to: Profiting monetarily, socially, or politically from the sexual exploitation of another.
15) **"Incident"**: Instances of sexual exploitation and abuse, violence, suicide, accident, or other trauma.
16) **"POA Affiliate"**: Any employee, non-employee, or member of the POA network, including, but not limited to all contractual relationships, consultants, volunteers, chapters, and members.
17) **"Partner Organizations"**: Any organization that has a contractual relationship with POA, including subcontractors and subawardees.
18) **"Victim"**: The child who is sexually exploited, abused, or otherwise harmed. The term Victim is not meant to imply a lack of strength, resilience, or capacity to survive.

3. Purpose

This policy applies to all POA Affiliates interacting with children both in the U.S. and abroad. This policy and related procedures describe POA's commitment to Child Safeguarding. POA's current programs support activities with children, who are particularly vulnerable to abuse and exploitation. This is due to the inherent power differential that exists between aid organizations and impacted communities, which heightens the risk of abuse and exploitation. In order to protect all program beneficiaries against this power differential, this Child Safeguarding Policy, the Sexual Exploitation and Abuse Prevention Policy, and the Sexual Harassment Policy serve to transform POA's values into behaviors to which all POA Affiliates are expected to conform.

This policy is meant to provide a general guidance and to comply with U.S. Government regulations, donor requirements, and all other applicable local laws. No code or policy can anticipate every situation that may arise. Accordingly, this policy is intended to serve as a source of guiding principles. Any violations of this policy will be treated as a serious infraction and will result in disciplinary action, up to and including termination, and any other available legal remedy. POA reserves the right to make all decisions on a case-by-case basis.

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4. Goal

POA is committed to providing a safe, nurturing working environment and protecting children who participate in programs and/or events sponsored by the organization. POA is committed to supporting victims, improving safeguarding capacity, and ensuring that children are safe when participating in POA programs and/or events sponsored by the organization. Child Safeguarding is preventative actions to ensure that all children are protected from deliberate or unintentional acts that lead to the risk of or actual harm by POA Affiliates who come into contact with children or impact them through our development interventions, humanitarian responses, and operations. Moreover, POA will not tolerate any violations of this Child Safeguarding policy and confirms commitment to report, investigate, respond to any alleged policy violations. POA takes a zero-tolerance approach to child exploitation and/or abuse by any POA Affiliates. This policy is intended to provide guidelines and best practices for promoting and maintaining a safe and secure environment in all interactions with children while ensuring POA Affiliates act responsibly to protect children.

5. Compliance

This policy applies to all groups, activities, and events sponsored by POA, as well as groups using POA's facilities who serve children. This policy also applies to all POA Affiliates and organizations, defined as:

- All staff (full-time, part-time, international, and national), and those engaged on short-term contracts (e.g., consultants, facilitators, mentors, sub-contractors, researchers, etc.);
- Volunteers, board members, trustees; and
- Partner organizations who have a formal/contractual relationship with POA.
    - POA should verify that the entity has a policy and procedure in place for Child Safeguarding. If not, POA will provide guidance to the entity to establish procedures on Child Safeguarding. If a partner elects to use its own policy, the partner policy must be of equal or higher standard for protecting and recognizing the rights of children, including following any donor requirements.

5.1 Order of Precedence

If any conflicts occur between this policy and Donor requirement, the issue shall be resolved by giving precedence in the following order:

1. Requirements according to the Donor (if the POA Affiliate works on a U.S. Government-funded project)
2. POA's Child Safeguarding Policy

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6. Child Safeguarding Core Principles

POA's capacity to achieve its vision and mission depends upon all POA Affiliates. Therefore, all POA Affiliates must uphold and promote the highest standards of ethical and professional conduct. POA prohibits any act of child abuse, child exploitation, child neglect, economic exploitation, bullying and cyberbullying, or ill treatment, as defined under Article 2. Definitions. The following core principles are to be followed by all POA Affiliates:

A. All children under the age of 18 have equal rights to protection from all forms of violence, as declared in Article 19 of the United Nations Convention on the Rights of the Child. The human rights of children will be respected and applied to all, irrespective of age, sex, gender, gender identity, sexual orientation, nationality, ethnicity, color, race, language, religious or political beliefs, marital status, disability, physical or mental health, family, socio-economic or cultural background, class, or any other aspect of their background or identity. Inequality, exclusion, and discrimination will be challenged and will not be tolerated;
B. Ensure compliance with host country and local child welfare and protection legislation or international standards, whichever gives greater protection, and with U.S. law where applicable;
C. Prohibit all personnel from engaging in child abuse, exploitation, or neglect;
D. Consider Child Safeguarding in project planning and implementation to determine potential risks to children that are associated with project activities and operations and identify gaps and ways to address;
E. Apply measures to reduce the risk of child abuse, exploitation, or neglect, including, but not limited to, limiting unsupervised interactions with children; prohibiting exposure to pornography; and complying with applicable laws, regulations, or customs regarding the photographing, filming, or other image- generating activities of children;
F. Promote child-safe screening procedures for personnel, particularly personnel whose work brings them in direct contact with children;
G. Have a procedure for ensuring that personnel and others recognize child abuse, exploitation, or neglect; mandating that personnel and others report allegations; investigating and managing allegations; and taking appropriate action in response to such allegations, including, but not limited to, dismissal of personnel;
H. Train all POA Affiliates to know how to report and who to contact when any concern arises, no matter how seemingly small or insignificant;
I. Respond to concerns including a mandate to investigate all credible allegations violations of this Child Safeguarding Policy. POA Affiliates are required to cooperate with any subsequent investigation. Corrective measures, including any personnel or disciplinary action, will be taken to prevent the recurrence of such activity; and
J. Ensure all POA Affiliates receive training and are made aware of the expectation in this policy in order to prevent, report, and respond to safeguarding concerns. Additionally, ensuring that all program beneficiaries are aware of the standards of behavior they can

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expect from POA Affiliates and of how they can raise a concern or report an alleged violation.

7. Child Safeguarding Code of Conduct

POA Affiliates are required to comply with the following code of conduct when interacting with children:

A. Any individual under the age of 18 is a child and is "underage," regardless of the legal age of consent of the country in which the child lives and/or in which the offense occurs;
B. POA Affiliates must not abuse or exploit a child or behave in any way that places a child at risk of harm;
C. Sexual activity with children (defined according to the Convention on the Rights of the Child as all persons under the age of 18) is prohibited regardless of the age of majority or age of consent locally. Mistaken belief in the age of a child is not a defense;
D. POA Affiliates are prohibited from dating or becoming romantically involved with a child;
E. POA Affiliates are prohibited from using language or behave towards a child or young person in a way that is inappropriate, offensive, abusive, sexually provocative, demeaning, or culturally inappropriate;
F. POA Affiliates are prohibited from fondling, holding, kissing, hugging, or touching children in an inappropriate or culturally insensitive way;
G. POA Affiliates are prohibited from acting in ways that shame, humiliate, belittle, or degrade children and young people, or otherwise perpetrate any form of emotional abuse;
H. POA Affiliates are prohibited from doing things of a personal nature for children, with whom they are in contact in a work-related context (e.g., taking a child/young person to the toilet/bathroom; helping them get un/dressed);
I. POA Affiliates are prohibited from sleeping in the same beds, sleeping bags, tents, hotel rooms, or other rooms with children unless the adult is an immediate family member of all children in the bed, sleeping bag, tent, hotel room, or other room. It is acceptable to have multiple adults sleep with all the children participating in one open space, such as a camp lodge. Furthermore, POA Affiliates are prohibited from having a child/children with whom the employee is in contact in a work-related context (program beneficiaries) stay overnight at their home or any other personal residential location or accommodation;
J. POA Affiliates are prohibited from discussing their own sexual activities, including dreams and fantasies, or discussing their use of sexually oriented or explicit materials, such as pornography, videos, or materials on or from the Internet, with children;
K. POA Affiliates are prohibited from possessing, viewing, streaming, downloading from the Internet, etc. any sexually oriented materials (magazines, cards, videos, films, clothing, etc.) on organization property or in the presence of children except as expressly permitted as part of a pre-authorized educational program;

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L. POA Affiliates are prohibited from using computers, mobile phones, or video/digital cameras or other electronic devices, to access, view, create, download, or distribute child pornography, including abusive images of children or young people;
M. POA Affiliates are prohibited from using computers, mobile phones, video and digital cameras, or other electronic devices or mediums to exploit, harass, or bully children;
N. POA Affiliates are prohibited from dressing, undressing, bathing, or showering in the presence of children;
O. POA Affiliates are prohibited from discriminating against, showing differential or preferential to, or favoring particular children;
P. POA Affiliates are prohibited from using physical punishment in any way for behavior management of children. No form of physical discipline is acceptable. This prohibition includes spanking, slapping, pinching, hitting, or any other physical force. Physical force may only be used to stop a behavior that may cause immediate harm to the individual or to a child or others;
Q. POA Affiliates are prohibited from the use, possession, distribution, or being under the influence of alcohol, illegal drugs, or the misuse of legal drugs while participating in or assisting with programs or activities specifically for children;
R. Every program for children must have established ratios of 2 adults per 1-20 children. Compliance with the established ratio is required at all times, including activities that occur off the organization's premises;
S. When boys, girls and other gender identities are participating, male, female and other gender identities adults must be present;
T. One-to-one counseling/meetings with children will be done in an open or public or other place where private conversations are possible but occur in full view of others or with another adult present;
U. When supervising or assisting private activities, such as dressing or showering children, POA Affiliates will remain in an area observable by other adults or work in pairs;
V. Parents or guardians must complete written permission forms before POA Affiliates transport children for a company sponsored activity or for any purpose; and
W. Implement a safeguarding approach that recognizes and responds to the specific safeguarding risks and needs of differing gender and other identities including take appropriate measures to address gender bias and other forms of discrimination and violence which may arise as a result of this bias. All approaches should take full account of gender in considering the specific safeguarding needs of girls, boys, and other gender identities to promote equality, equity, and ultimately increase safety and protection.

8. Screening and Requirements

To ensure Child Safeguarding, POA has established the following practices, which apply to all POA Affiliates.

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8.1 Safe Recruitment and Screening

In addition to POA's standard recruitment processes, the following child safeguarding measures will be applied as part of the safe recruitment process. POA will screen individuals and entities who are expected to directly interact with children on POA HQ programs as follows:

For Individuals:

- Receive a signed Child Safeguarding Code of Conduct;
- Run a Visual Compliance check (https://www4.visualcompliance.com/_logon.cfm); and
- If the individual is U.S. based, run a sex offender registry (https://www.nsopw.gov/).

If additional verification is required or POA staff has concerns: reference checks by persons outside the organization who know the POA Affiliate. Please see sample reference check form in Annex A.

For Partner Organizations:

- Receive signed Child Safeguarding Code of Conduct from entity's legal representative;
- All agreements with Partners Organizations must include the requirements of this policy if the Partners Organization will be interacting with children.

All Program Directors are responsible for ensuring that any POA Affiliates on POA HQ programs are screened prior to interacting with children. POA's HR department is responsible for verifying that POA HQ staff, interns and consultants complete the above requirements as part of the new hire onboarding process.

8.2 Onboarding Requirements

Prior to interacting with children, all POA Affiliates must complete the following:

For Individuals:

- Fully read and review the Child Safeguarding Policy;
- Sign POA's Child Safeguarding Code of Conduct; and
- Annually attend a training/course, all POA Affiliates must choose one of the following options:
    1. Attend a POA Child Safeguarding training in-person or watch on-demand online. Trainings will be available at least once a year in-person led by POA's HR staff and/or an external firm. Training will include a review of the Child Safeguarding Policy, guidance on promoting a culture where children's rights are observed, how to identify potential harm to children, and how to report allegations and suspicions of abuse. Annual trainings will be recorded and available on-demand via POA's External SharePoint. These trainings will be in English; however, the PowerPoint slides will be available in Spanish and Portuguese.

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2. Complete the online Child Safeguarding training provided at no cost by UNICEF annually and send copy of certification to their point of contact at POA. This course is available in English, Spanish, French, and Arabic.

Once training is completed, the individual will need to complete a confirmation of training which is available electronically or hard copy from the individuals point of contact at POA.

For Partner Organizations:

- If able, sign POA's Child Safeguarding Code of Conduct; and
- Follow internal organizational policy and procedure on Child Safeguarding

POA's Program Directors are responsible for verifying that POA Affiliates under their program(s) complete the above requirements. POA's HR Department is responsible for verifying that POA HQ staff, interns and consultants complete the above requirements as part of the new hire onboarding process.

8.3 Education and Training Requirements

POA understands the importance of providing adequate training and awareness to staff and POA Affiliates to ensure a clear understanding and effective enforcement of the policy. Therefore, POA commits to:

1. Disseminating and promoting the policy to all POA Affiliates and program beneficiaries. POA will make the policy available and accessible both in print and electronic formats.
2. Translating and creating versions of the policy in the primary languages within the Western Hemisphere (English, Spanish, Portuguese, and French), and other languages as appropriate.
3. Providing regular briefings and annual trainings on the policy and incorporate trainings as part of its onboarding process for new hires.
4. Providing training to all POA Affiliates who may teach, work with, counsel, supervise, chaperone, lead, or direct any child.
5. Ensuring POA Affiliates who may work with children attend at least one training on Child Safeguarding every year.
6. Providing further training for POA Affiliates with specific responsibilities under this policy. These groups would include anyone working directly with children, and POA's Program Directors and Country Directors designated to receive and respond to allegations of possible violations of the Child Safeguarding Policy.
7. POA's Program Directors are required to:
    a. Ensure all POA Affiliates review and sign the Child Safeguarding Policy and Code of Conduct;
    b. Ensure all staff within their unit attend a Child Safeguarding training annually; and

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c. Maintain individual confidential records that include who has attended the training and the date of attendance.

POA will ensure POA Affiliates have access to materials and resources that support understanding and implementation of this policy. POA will also encourage and facilitate the sharing of best practices in implementing the Child Safeguarding Policy.

9. Reporting Procedures

POA is committed to protecting any victim and anyone who submits a report on behalf of a child. Therefore, the following procedures were developed to maintain a safe and confidential experience during the reporting process.

9.1 Filing a Report

For Individuals:

- All reports of inappropriate behavior or policy violations with children will be taken seriously. If POA Affiliates observe any inappropriate behavior or behavior that may violate any provision of this policy, they must immediately contact the immediate supervisor, program, or country director of the alleged offender.
- If the reporter believes that there is a conflict with this reporting mechanism or does not receive a response within three business days, they should immediately submit a report via the first method listed below, followed by the second if there is no response.
    - Contact POA's internal HR department at poahr@partners.net.
    - Contact POA's external and confidential hotline, Foster Thomas, at (443)-951-4951. *Foster Thomas is an outside party who will relay any concerns to the Ethics Committee of the Board. Reports may be made anonymously.*

For Partner Organizations:

- In accordance with Section 9.6 Complaints about Partner Organizations, Partner Organizations with a contractual relationship to POA upon receiving a violation report, should follow their organization policy. Notification of the alleged Child Safeguarding violation should be sent to POA's point of contact within three (3) business days.

Malicious reporting of violations with the intention of harming another person's integrity or reputation amounts to misconduct and is subject to disciplinary action. This is distinct from reports made in good faith based on the judgment and information available at the time of the report, which may not be confirmed by an investigation.

9.2 Response to a Report

Once POA and/or Foster Thomas receives a report of an alleged violation of this policy, POA will determine if a formal investigation is necessary with a 3rd party firm, and if so, the 3rd party

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firm will lead the investigation effort in coordination with POA. POA's HR department will notify the complainant if an investigation is deemed necessary by the 3rd party firm. Foster Thomas, POA's HR department, and any supervisors that receive a report are expected to notify the 3rd party firm within three (3) business days. The 3rd party firm is expected to convene a meeting to review the report within three (3) business days of receipt. They will then review the circumstances of the incident and develop a response plan accordingly. If POA and/or the 3rd party firm believe that there are any serious or imminent threats to the safety of the report's subject, appropriate action will be taken immediately to ensure the individuals safety. POA's HR department will continuously update the complainant regarding the status of the investigation.

In the absence of a 3rd party firm, POA will designate a minimum of one member of the Board of Directors to serve in the POA Compliance Committee who will be available to investigate good faith disclosures or reports of any wrongdoing, including anonymously or confidentially. The POA Compliance Committee will lead an investigation, with outside advisory consultation provided as needed. Based on the consultation and investigation, the POA Compliance Committee will render a decision on how to respond and what actions, if any, to take. No prior experience in a legal or investigative field is necessary to serve on the committee. However, if necessary, POA will allocate funds to support training for the Compliance Committee.

9.3 Child Data and Cybersecurity

All POA programs and activities that involve children will follow child data security and cybersecurity protocols to protect sensitive data. This includes password-protecting and encrypting sensitive files through Adobe before they are shared or stored on digital platforms. Staff that are not supervisors, and country or program directors will have limited and restricted access to sensitive data. POA will additionally prioritize the safety and security of children participating in programs by designing tools and strategies to protect personally identifiable information (PII). For instance, POA will redact PII in all public reports and use pseudonyms or other codes in place of full names for children.

9.4 Confidentially

Furthermore, POA will ensure that all complaints or allegations can be made anonymously. Every effort will be made to maintain confidentiality throughout the complaints process. Information that identifies individuals involved in a complaint will be limited to essential personnel and will not be shared further without obtaining the informed consent of those involved, except if someone's life is at risk, a child is at risk, or as required by law in consultation with legal counsel and where safe to do so. Non-identifying information will be shared with designated focal points as per reporting requirements.

All Child Safeguarding related information must be kept confidential, identities must be protected, and the personal information on survivors should be collected and shared only to a limited number of authorized people for the purpose of conducting an investigation. Informed consent of the person concerned will be requested prior to an investigation.

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Staff involved in the complaints process will be made aware of the importance of maintaining confidentiality and will be asked to sign a confidentiality agreement. Employees who breach confidentiality may be subject to disciplinary action up to and including termination of employment, and others who work with POA may have their relationship with POA terminated. In some cases, such breaches may constitute breaking the law.

9.5 Retaliation against Complainants, Witnesses, or Victims

POA prohibits any retaliation against anyone who legitimately exercises their rights under this policy or who participates/cooperates in an investigation. There is to be no interference, coercion, discrimination, reprisal, or retaliation against any person for making a valid and truthful complaint or report of a violation. Anyone who believes they are being discriminated against because of legitimately filing a complaint or truthfully participating in an investigation should immediately file a report in the same manner as defined in section 9.1 above.

Anyone who becomes aware of possible harassment or retaliation must immediately file a report so that the organization can investigate in a timely and confidential manner. POA will take action against anyone, whether they are the subject of a complaint or not, who seeks or carries out retaliatory action against complainants, witnesses, or victims. Employees may be subject to disciplinary action, up to and including termination of employment. Others who work with POA may have their relationship with POA terminated.

9.6 Complaints about Partner Organizations

As mentioned in 9.1 Filing a Report, Partner Organizations should notify POA's point of contact of any alleged violation of the Child Safeguarding policy within three (3) business days. Where POA receives a complaint about a partner organization, POA will expect the partner to respond safely, quickly, and appropriately. POA will assist the partner to ascertain its reporting obligations.

Where appropriate, POA will work with the partner to address the issue through an appropriate independent investigation. If the outcome is that abuse has occurred, ongoing work with the partner cannot involve the individual(s) concerned. If there is reason to believe that an allegation of abuse has been dealt with inappropriately by a partner, then they risk withdrawal of funding or ending the relationship.

9.7 Communication

If there is an alleged violation, POA Affiliates are not permitted to send communications to employees, donors, program participants, or others about the incident. Due to the sensitivity of the subject matter and protection of child data, all communications must be approved by POA's HR. This especially includes, but is not limited to, communications with the general public or the media.

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9.8 Accountability of Management

POA Management is committed to taking all appropriate corrective actions. Disciplinary, legal, or other applicable actions in response to any violation of the Child Safeguarding Policy will be taken against any individual who has committed a violation and/or anyone who knew of such a violation and failed to act or report. POA Management will continuously evaluate findings of violations to the Child Safeguarding Policy to identify and address gaps and/or weaknesses in applicable policies, procedures, and protocols.

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